

Court No. - 1

Case :- WRIT - C No. - 12851 of 2020

Petitioner :- Avdhesh Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sanjay Kumar Pandey

Counsel for Respondent :- C.S.C.

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Singh,J.

Put up this matter as fresh on 10.09.2020.

(Ajit Singh, J.)

(Ramesh Sinha, J.)

Order Date :- 28.8.2020

Atul

Court No. - 32

Case :- WRIT - C No. - 12851 of 2020

Petitioner :- Avdhesh Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sanjay Kumar Pandey

Counsel for Respondent :- C.S.C.

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following relief:

"A. Issue a writ order or direction in the nature of mandamus directing/commanding the respondent authority to decide the representation dated 18.7.2020 within the stipulated period (Annexure no. 6 to the writ petition).

B. Issue a writ order or direction in the nature of mandamus directing/commanding to the respondents authority to correct the disputed bill under section 6.5 U.P. Electricity Supply Code 2005 and provide correct bill of the petitioner."

Heard learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005. We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the Respondent No. 4, Executive Engineer/appropriate authority along with a certified copy of this order enclosing therewith a copy of the writ petition and its annexures for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within four weeks from the date of receipt of a certified copy of this order by a reasoned & speaking order after giving opportunity of hearing to the petitioner.

For a period of seven weeks, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 10.9.2020

vinay